

Paramjit Singh Gandhok vs Reema Ahluwalia @ Gandhok on 6 January, 2022

Bench: Shree Chandrashekhar, Ratnaker Bhengra

IN THE HIGH COURT OF JHARKHAND AT RANCHI
(Civil Appellate Jurisdiction)

First Appeal No. 138 of 2017

(Against the judgment and the decree, both dated 4th April 2017, passed by the learned Additional Principal Judge, Family Court, Ranchi in Matrimonial Title Suit No. 132 of 2016)

Paramjit Singh Gandhok, son of late Surendra Singh Gandhok, resident of Gandhok House, Pujabi Colony, PO & PS Namkum, District Ranchi.
... Appellant

Versus

Reema Ahluwalia @ Gandhok, daughter of Mohan Singh Ahluwalia, resident of Block Nil 77/B, Malviya Nagar, PO & PS Malviya Nagar, New Delhi
... Respondent

(Through V.C.)

PRESENT

HON'BLE MR. JUSTICE SHREE CHANDRASHEKHAR
HON'BLE MR. JUSTICE RATNAKER BHENGRA

For the Appellant : Mr. Rajesh Kumar, Advocate
For the Respondent : Mr. Pratyush Kumar, Advocate

JUDGMENT

6th January 2022 Per, Shree Chandrashekhar,J.

Against the judgment and decree, both dated 4 th April 2017, passed by the learned Additional Principal Judge, Family Court, Ranchi in Matrimonial Title Suit No. 132 of 2016, the husband has preferred this first appeal under section 19(3) of the Family Court's Act, 1984.

2. In Matrimonial Title Suit No.132 of 2016, stand taken by the appellant that his wife inflicted various acts of cruelty on him and, therefore, he is entitled for a decree of divorce was not accepted by the learned trial Judge and divorce suit was dismissed, however, alternatively a decree for judicial separation of the parties has been granted.

3. In the present appeal, the respondent-wife has filed three interlocutory applications vide IA No. 5484 of 2020 for grant of permanent alimony under section 25 of the Hindu Marriage Act, 1955; IA No. 5485 of 2020 for grant of maintenance pendente lite under section 24 of the Hindu Marriage Act, 1955, and; IA No. 5486 of 2020 seeking custody of the child under section 26 of the Hindu

Marriage Act, 1955.

4. Mr. Pratyush Kumar, the learned counsel for the respondent, states that in all three interlocutory applications the respondent has made a categorical statement that there is irretrievable breakdown of marriage between the parties.

5. Today, Mr. Pratyush Kumar, the learned counsel for the respondent, makes statement on instructions that the respondent-wife is also willing to take divorce, to which the appellant is agreeable.

6. Mr. Rajesh Kumar, the learned counsel for the appellant, affirming the statement made on behalf of the respondent-wife, states that the appellant is intending to file a joint petition for mutual divorce under section 13-B of the Hindu Marriage Act, 1955.

7. In view of the aforesaid statement made by Mr. Pratyush Kumar, the learned counsel for the respondent-wife, Mr. Rajesh Kumar, the learned counsel for the appellant, seeks permission to withdraw this first appeal to enable the parties to move the Court concerned seeking divorce by mutual consent by filing appropriate application under section 13-B of the Hindu Marriage Act, 1955.

8. In the above circumstances, without expressing any opinion on the merits of the matter, this first appeal is dismissed as withdrawn, with liberty to the parties as aforesaid.

9. IA No. 5484 of 2020, IA No. 5485 of 2020 and IA No. 5486 of 2020 stand disposed of.

(Shree Chandrashekhar, J.) (Ratnaker Bhengra, J.) Jharkhand High Court, Ranchi Dated: 6th January 2022 Soumya/Nibha-NAFR